

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Tsui	Team: Squad #15	CCRB Case #: 202100459	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/21/2021 6:20 PM	Location of Incident: § 87(2)(b) Brooklyn, NY	18 Mo. SOL 7/21/2022	Precinct: 79		
Date/Time CV Reported Thu, 01/21/2021 11:04 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Thu, 01/21/2021 11:04 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Haris Ahmemulic	04604	967409	PSA 3

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Asghar Mahmood	03642	942101	PSA 3
2. POM Christophe Racicot	25699	961137	PSA 3
3. POM Nicholas Tocci	31349	953485	PSA 3
4. POM Serge Kapyrin	07765	954990	PSA 7
5. POF Yamilka Perdomo	12771	968706	PSA 3
6. POM Alex Ayala	13253	955733	PSA 3
7. POM Arturo Chavez	28684	966998	PSA 3
8. SGT Daniel Hudson	3492	951830	PSA 3
9. POF Neysa Korycki	04271	960606	079 PCT
10. POM David Cuzco	24241	968361	079 PCT
11. SGT Michael Kreismer	01611	928598	PSA 3
12. POM Daniel Roberts	22652	962735	PSA 3
13. LT Alan Chau	00000	940986	PSA 3
14. POF Olivia Kania	18131	960744	PSA 3
15. POM Cory Levy	19666	958812	PSA 3

Officer(s)	Allegation	Investigator Recommendation
A . POM Haris Ahmemulic	Abuse: Police Officer Haris Ahmemulic stopped § 87(2)(b)	A . Unsubstantiated
B . POM Haris Ahmemulic	Discourtesy: Police Officer Haris Ahmemulic spoke discourteously to § 87(2)(b)	B . Substantiated
C . POM Haris Ahmemulic	Abuse: Police Officer Haris Ahmemulic threatened to arrest § 87(2)(b)	C . Exonerated
D . POM Haris Ahmemulic	Abuse: Police Officer Haris Ahmemulic threatened § 87(2)(b) with the use of force.	D . Substantiated
E . POM Haris Ahmemulic	Force: Police Officer Haris Ahmemulic used a chokehold against § 87(2)(b)	E . Unsubstantiated
F . POM Haris Ahmemulic	Force: Police Officer Haris Ahmemulic restricted § 87(2)(b) breathing.	F . Unsubstantiated

Case Summary

On January 21, 2021, § 87(2)(b) filed this complaint at the 79th Precinct station house on behalf of § 87(2)(b). The CCRB received this complaint on January 21, 2021.

On January 21, 2021, at approximately 6:20 PM, outside the § 87(2)(b) located at § 87(2)(b) in Brooklyn, § 87(2)(b) and § 87(2)(b) exited the front entrance of the building, each holding plastic cups containing juice in their hands. § 87(2)(b) walked towards the courtyard exit and threw his cup in the direction of a garbage bin. § 87(2)(b) missed the bin and the cup hit the floor instead. At this time, Police Officer Haris Ahmemulic signaled Police Officer Serge Kapyrin, both of PSA 3, to stop § 87(2)(b). PO Kapyrin approached § 87(2)(b) from the front and PO Ahmemulic approached § 87(2)(b) from behind (**Allegation A: Abuse of Authority, unsubstantiated**). PO Ahmemulic told § 87(2)(b) “You do this shit all the time.” (**Allegation B: Discourtesy, substantiated**) PO Ahmemulic asked § 87(2)(b) for his ID. § 87(2)(b) asked PO Ahmemulic why he needed to give his ID to him. PO Ahmemulic told § 87(2)(b) that if he did not present his ID, then he will be placed in handcuffs (**Allegation C: Abuse of Authority, exonerated**). PO Ahmemulic instructed § 87(2)(b) to put his hands behind his back. § 87(2)(b) refused and rested his hands at his side. PO Ahmemulic unholstered his Taser and threatened to use it on § 87(2)(b) (**Allegation D: Abuse of Authority, substantiated**). At this time, other officers from PSA 3 and the 79th Precinct responded to the location. PO Ahmemulic, PO Kapyrin and the other officers grabbed § 87(2)(b) arms to restrain him. PO Ahmemulic allegedly grabbed the front of § 87(2)(b) neck and choked him with his hand. (**Allegations E and F: Force, unsubstantiated**) § 87(2)(b) breathing was partially restricted as a result.

§ 87(2)(b) was taken to the 79th Precinct stationhouse where marijuana was found on his person. § 87(2)(b) complained of pain to his hands but refused medical attention. § 87(2)(b) was charged with resisting arrest, obstruction of governmental administration, local law violation for littering and the unlawful possession of marijuana, according to his arrest report, § 87(2)(b) (Board Review 14).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Haris Ahmemulic stopped § 87(2)(b)
Allegation (B) Discourtesy: Police Officer Haris Ahmemulic spoke discourteously to § 87(2)(b)
§ 87(2)(b)

§ 87(2)(b) stated (Board Review 1) that when he exited the front entrance with § 87(2)(b) he observed PO Ahmemulic standing in front of the building. PO Kapyrin was standing on the sidewalk approximately a few feet away. § 87(2)(b) and § 87(2)(b) both held clear plastic cups in their hands that contained nonalcoholic juice. § 87(2)(b) walked towards the courtyard exit and threw his cup at a garbage bin. § 87(2)(b) missed the bin and the cup fell on the ground. At this time, PO Ahmemulic called out to PO Kapyrin and told him, “Get him”. PO Kapyrin approached § 87(2)(b) from the front and PO Ahmemulic approached from behind. PO Ahmemulic requested to see § 87(2)(b) ID. § 87(2)(b) asked PO Ahmemulic why he needed to see his ID. PO Ahmemulic did not answer § 87(2)(b). At this time, PO Kapyrin told § 87(2)(b) “It’s too late. Just put your hand behind your back.” § 87(2)(b) (Board Review 1) did not mention that PO Ahmemulic or any officers spoke discourteously to him.

PO Ahmemulic stated (Board Review 6) that he observed § 87(2)(b) and § 87(2)(b) exit the § 87(2)(b) each holding one plastic cup in their hands. PO Ahmemulic stated that he was familiar with § 87(2)(b) prior to the incident. PO Ahmemulic frequently observed § 87(2)(b)

PO Kapyrin stated (Board Review 7) he stood a few feet away from PO Ahmemulic when PO Ahmemulic called out to him and said something to the effect of, "Hold him", pointing at § 87(2)(b). PO Kapyrin walked over to § 87(2)(b) but did not know why PO Ahmemulic wanted him to. PO Kapyrin stated that at one point during the incident he observed § 87(2)(b) throw a cup into the fenced grass area, but he did not recall if it was before or after PO Ahmemulic instructed PO Kapyrin to approach § 87(2)(b). PO Kapyrin stated that when § 87(2)(b) refused to provide his ID for the issuance of a littering summons, he and PO Ahmemulic had the authority to place him under arrest. PO Kapyrin did not state that PO Ahmemulic threatened to arrest § 87(2)(b).

DCT Case No. 2015-15012 (Board Review 5) states that “officers are to behave professionally and respectfully towards members of the public and avoid the use of discourteous language; however, officers’ use of profanities during stressful street encounters do not constitute misconduct.”

The BWC video captures § 87(2)(b) with a cup in his hand when he exited the building, but the

camera loses sight of it, and § 87(2)(b) hand was empty moment later. § 87(2)(g)

It is undisputed that § 87(2)(b) was stopped during the incident. § 87(2)(g)

it is recommended that this **Allegation A** be closed as *unsubstantiated*.

§ 87(2)(g)

PO Ahmemulic's used of the phrases "Give me the shit" and "Can you just fucking take it. Just fucking take it" § 87(2)(g)

PO Ahmemulic's use of the phrase, "You do this shit all the time" at the beginning of the incident § 87(2)(g)

it is recommended that **Allegation B** be closed as *substantiated*.

Allegation (C) Abuse of Authority: Police Officer Haris Ahmemulic threatened to arrest

§ 87(2)(b)

did not mention that PO Ahmemulic threatened to arrest him.

PO Ahmemulic stated (Board Review 6) that § 87(2)(b) threw his plastic cup over the fenced grass area outside the front entrance. PO Ahmemulic told § 87(2)(b) that he needed to see his ID for the cup he threw on the grass. He explained that he intended to write § 87(2)(b) a summons for littering. He did not consider § 87(2)(b) free to leave after that point. § 87(2)(b) told PO Ahmemulic that he did not throw out a cup and refused to show his ID. PO Ahmemulic told § 87(2)(b) that if he did not present an ID, then he would be placed in handcuffs. § 87(2)(b) told PO Ahmemulic to apply the handcuffs on me. PO Ahmemulic handcuffed § 87(2)(b) and he explained that he intended to bring § 87(2)(b) back to the stationhouse to verify his identity and to issue him a summons for littering.

PO Ahmemulic's BWC video (Board Review 11) begins with PO Ahmemulic standing in front of § 87(2)(b) building. At timestamp 00:30, § 87(2)(b) and § 87(2)(b) walk out of the front entrance. At timestamp 00:40, § 87(2)(b) and § 87(2)(b) walk past the garbage bins in front of the building, each with one cup in their hands. At timestamp 00:45, PO Ahmemulic signals PO Kapyrin, and points his finger at § 87(2)(b). At timestamp. 00:50, PO Kapyrin walks a few steps towards § 87(2)(b) and § 87(2)(b). PO Kapyrin sticks his left arm in front of § 87(2)(b) and grabs his bicep. At timestamp 00:55, § 87(2)(b) does not have his cup in his right hand. The BWC video did not capture what § 87(2)(b) does with the cup, as his body was turned away from the camera. § 87(2)(b) body language, specifically a follow through motion with his right arm, suggests that he might have thrown the cup in the grass, however the video does not capture it. There is no garbage bin in the vicinity of where § 87(2)(b) stood at this time. PO Ahmemulic approached § 87(2)(b) from behind. There is no audio recorded prior to timestamp 01:00, and PO Ahmemulic did not appear to speak with § 87(2)(b) until timestamp 00:57 and the cup is not in § 87(2)(b) hand at timestamp 00:57. PO Kapyrin and PO Ahmemulic reach for § 87(2)(b) left arm. § 87(2)(b) pulls his left arm away from the two officers. PO Kapyrin then holds § 87(2)(b) right arm. At timestamp 01:01, PO Ahmemulic tells § 87(2)(b) "You do this shit all the time." § 87(2)(b) tells PO Ahmemulic that he is always harassing him. PO Ahmemulic asks § 87(2)(b) for his ID. § 87(2)(b)

§ 87(2)(b) asks the officer why. PO Ahmemulic tells § 87(2)(b) that he threw his drink on the ground. § 87(2)(b) tells PO Ahmemulic that he did not throw anything on the ground. At timestamp 01:08, PO Ahmemulic tells § 87(2)(b) give me your ID or you will be in handcuffs.” § 87(2)(b) replies, “Then handcuff me.”

According to NYPD Patrol Guide Procedure 209-09 (Board Review 8), when issuing a summons returnable to Traffic Violation Bureau or Criminal Court, officers are to “1. inform the violator of the offense committed. 2. Request the violator show proof of identity and residence. 3. Conduct a license and warrant check. 4. Remove violator to command for investigation if doubt concerning identity exist”

The BWC captured PO Ahmemulic asking § 87(2)(b) for his ID four times after he allegedly threw a cup into the grass area. § 87(2)(b) refused each time. After the fourth time, PO Ahmemulic told § 87(2)(b) that if he did not provide his ID, he will be placed in handcuffs. § 87(2)(g)

it is recommended that **Allegation C** be closed as *exonerated*.

Allegation (D) Abuse of Authority: Police Officer Haris Ahmemulic threatened § 87(2)(b) with the use of force.

§ 87(2)(b) (Board Review 1) did not mention that PO Ahmemulic threatened him with the use of his Taser.

PO Ahmemulic stated (Board Review 6) that when he attempted to place § 87(2)(b) in handcuffs, § 87(2)(b) exhibited active resistance, by attempted to walk away from PO Kapyrin and himself. § 87(2)(b) refused multiple commands from PO Ahmemulic and PO Kapyrin to put his hands behind his back and to turn around. § 87(2)(b) rested his left arm on his left leg and raised his right arm in the air so that officers cannot apply handcuffs on him. PO Ahmemulic stated that based on his training at the Police Academy, he threatened to use his Taser to attempt to calm § 87(2)(b) down and to gain his compliance.

PO Kapyrin stated (Board Review 7) that when he applied one cuff on one of § 87(2)(b) right wrist, § 87(2)(b) straightened and flailed both of his arms. PO Kapyrin could not bring § 87(2)(b) other arm behind his back to lock both cuffs on § 87(2)(b) wrists. PO Ahmemulic grabbed § 87(2)(b) arms and shoulders to keep him still. At this time, § 87(2)(b) raised his right arm above his head. PO Ahmemulic requested additional officers to the location. § 87(2)(b) flexed and strained his body. PO Kapyrin felt that if the opportunity presented, § 87(2)(b) might have fought him or PO Ahmemulic.

According to PO Ahmemulic’s BWC footage (Board Review 11), at timestamp 01:15, PO Ahmemulic attempts to bring § 87(2)(b) left arm behind his back. § 87(2)(b) tenses his arm and pulls it to the front of his body. § 87(2)(b) walks away from PO Ahmemulic and PO Kapyrin. At timestamp 01:45, PO Kapyrin instructs § 87(2)(b) to put his arm behind his back, twice. § 87(2)(b) refuses each time. At timestamp 02:02, § 87(2)(b) tenses his body and arms. PO Ahmemulic pulls § 87(2)(b) left arm behind his back. § 87(2)(b) continues to tense his left arm and refuses to put both of his arms behind his back. At timestamp 02:22, PO Ahmemulic takes out his Taser and tells § 87(2)(b) “I’m gonna Tase you. I swear to God I’m going to Tase you. I swear to God I’m going to Tase you.”

According to PO Racicot's BWC (Board Review 12), at timestamp 01:18, PO Ahmemulic takes out his Taser. PO Ahmemulic tells § 87(2)(b) "I will Tase you. I swear to God I will Tase you." PO Ahmemulic points his Taser at § 87(2)(b) chest. At this time, only PO Ahmemulic and PO Kapyrin are making physical contact with § 87(2)(b). PO Ahmemulic held § 87(2)(b) left arm and PO Kapyrin attempts to lock one cuff on § 87(2)(b) right wrist. § 87(2)(b) raised right arm in the air. At timestamp 01:26, § 87(2)(b) raises his right arm, and pulls it away from PO Kapyrin, who is still attempting to lock a single cuff on § 87(2)(b) wrist. At timestamp 01:33, § 87(2)(b) tells PO Ahmemulic to relax. PO Racicot calmly tells § 87(2)(b) to turn around. § 87(2)(b) says he does not need to turn around. PO Kapyrin and PO Racicot attempt to bring § 87(2)(b) arm behind his back, and is briefly successful until § 87(2)(b) pulled his arm back up in the air.

According to NYPD Patrol Guide Section 221-08 (Board Review 3), "Tasers" or Conducted Electrical Weapons (CEW) "can be an effective means of subduing aggressive suspects and emotionally disturbed persons (EDPs)... A CEW should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present." The Patrol Guide section further defined active resistance as "physically evasive movements to defeat a member of the service's attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody." Before the deployment of CEWs, officers should consider, "a. The nature and severity of the crime/circumstances, b. Actions taken by the subject, c. Duration of the action, d. Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, e. Whether the subject is actively resisting custody, f. Whether the subject is attempting to evade arrest by flight, g. Number of subjects in comparison to the number of MOS, h. Size, age, and condition of the subject in comparison to the MOS, i. Subject's violent history, if known."

When PO Ahmemulic and PO Kapyrin attempted place § 87(2)(b) in handcuffs, § 87(2)(b) ignored the officers' commands to turn around and to put his hands behind his back. § 87(2)(b) resisted officers by tensing his body and by raising one cuffed arm in the air. § 87(2)(g)

§ 87(2)(b) PO Ahmemulic unholstered his Taser at approximately ninety seconds into the incident and approximately sixty seconds into the officers' attempt to restrain § 87(2)(b) with handcuffs. PO Ahmemulic issued the threat to § 87(2)(b) when additional officers had arrived on scene and outnumbered § 87(2)(b) four to one. Further, the only history of § 87(2)(b) PO Ahmemulic was familiar with was of § 87(2)(b) drinking from an open container and selling marijuana, none of which are violent crimes. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation D** be closed as *substantiated*.

Allegation (E) Force: Police Officer Haris Ahmemulic used a chokehold against § 87(2)(b)
Allegation (F) Force: Police Officer Haris Ahmemulic restricted § 87(2)(b) breathing.

§ 87(2)(b) stated (Board Review 1) that when PO Ahmemulic and PO Kapyrin told him to put his hands behind his back, PO Ahmemulic grabbed § 87(2)(b) left arm. PO Ahmemulic placed one

cuff on § 87(2)(b) left hand and PO Kapyrin held § 87(2)(b) right arm. At this time, additional officers responding to the location. PO Hudson continued to grab § 87(2)(b) right arm. PO Ahmemulic did not connect the handcuffs together at this time. PO Ahmemulic grabbed § 87(2)(b) neck from the side with five fingers and choked him. PO Ahmemulic held his hand around § 87(2)(b) neck for approximately two minutes. § 87(2)(b) felt a burning sensation in his neck and had difficulty breathing. § 87(2)(b) told PO Ahmemulic, PO Kapyrin, PO Ranciot and PO Hudson. “You’re hurting me. C’mon, what are you doing? You’re hurting me. Get off of me. You’re hurting me. You’re hurting me. Get off of me.” § 87(2)(b) stated that PO Ahmemulic was more aggressive than the other officers. § 87(2)(b) was definitive in identifying PO Ahmemulic as the officer who choked him. After § 87(2)(b) was handcuffed, he was transported to the 79th Precinct station house. § 87(2)(b) stated that he had pain in his wrists and ankles and requested to go to the hospital. EMS workers arrived and told § 87(2)(b) that they will transport him to § 87(2)(b) Hospital. He told the EMTs that he disliked § 87(2)(b) Hospital and refused medical attention.

PO Ahmemulic and PO Kapyrin’s statements were mostly similar. PO Ahmemulic and PO Kapyrin both stated that § 87(2)(b) refused to comply with orders to put his arms behind his back and to be placed in handcuffs. As mentioned in Allegation D, PO Ahmemulic grabbed § 87(2)(b) left arm and PO Kapyrin grabbed § 87(2)(b) right arm. § 87(2)(b) raised his right arm in the air to prevent officers from connecting the handcuffs. PO Ahmemulic and PO Kapyrin grabbed § 87(2)(b) arms to restrain him. Both officers denied choking § 87(2)(b) with their hands and denied any other officers choked § 87(2)(b). PO Ahmemulic was presented with PO Ayala’s BWC (Board Review 15). At timestamp 01:09, which captures the same footage from a different angle as PO Ahmemulic’s BWC at 03:32, PO Ahmemulic appears to briefly wrap his left arm around the back of § 87(2)(b) neck. During PO Ahmemulic’s CCRB interview, he stated that at that exact point of the incident, one cuff was applied to § 87(2)(b) left wrist and that he wrapped his left arm around § 87(2)(b) body in attempt to place § 87(2)(b) arm behind his back and to connect and lock the handcuffs. PO Ahmemulic stated that he did not apply any pressure to § 87(2)(b) neck.

PO Ahmemulic stated that after § 87(2)(b) was handcuffed, he was transported to the 79th Precinct station house. At the holding cells, § 87(2)(b) complained of pain to his hands. An ambulance was called for § 87(2)(b) however, § 87(2)(b) refused to go to the hospital after speaking with the EMS workers.

According to PO Ahmemulic’s BWC (Board Review 11), at timestamp 01:14, PO Ahmemulic grabs and holds the top of § 87(2)(b) left shoulder and left arm. At timestamp 01:32, PO Ahmemulic calls for additional officers to the location. At timestamp 01:47, PO Ahmemulic tells § 87(2)(b) to put his hand behind his back. § 87(2)(b) tells PO Ahmemulic that he is “Always violating” him. At timestamp 01:55, § 87(2)(b) leans against the building gate and tells PO Ahmemulic and PO Kapyrin to relax. PO Ahmemulic and PO Kapyrin hold § 87(2)(b) left arm. At timestamp 02:00, PO Ahmemulic reaches over § 87(2)(b) left shoulder. At timestamp 02:10, § 87(2)(b) tenses his left arm. § 87(2)(b) pulls his left arm upwards from PO Ahmemulic’s hold. At timestamp 02:20, PO Kapyrin attempt to place handcuffs on § 87(2)(b) right arm. At timestamp 02:34, officers instruct § 87(2)(b) turn around and put his hands behind his back. § 87(2)(b) asks the officers why and refuses. At timestamp 02:58, PO Kapyrin and PO Ahmemulic hold both of § 87(2)(b) arms and turned § 87(2)(b) back towards them. § 87(2)(b) tenses his body. At 03:30 PO Ahmemulic and PO Kapyrin roll § 87(2)(b) sleeve slightly up and attempt to apply handcuffs on his wrist. At timestamp 03:34, PO Ahmemulic says, “Can you just fucking take it”, however, the BWC lens is obscured by officers. § 87(2)(b) voice is heard yelling at PO Ahmemulic, “What are you doing?” At timestamp 03:53, the BWC lens is no longer obstructed. § 87(2)(b) says out loud, “What are you doing?” to the officers. Officer hold § 87(2)(b) arms back. PO Ranciot and PO

Hudson grab § 87(2)(b) right arm and turn him around to face the gates to the building. PO Ahmemulic connects § 87(2)(b) handcuffs. At timestamp 04:12, § 87(2)(b) yells “What are you locking me up for!” § 87(2)(b) does complain to officers that his breathing was restricted. Throughout the video, § 87(2)(b) yells at officers and did not at any time wheeze, cough, or exhibit signs of respiratory distress during and after § 87(2)(b) was restrained by PO Ahmemulic.

According to PO Hudson’s BWC video (Board Review 13), at timestamp 01:08, PO Ahmemulic says, “Can you just fucking take it.” PO Ahmemulic faces § 87(2)(b) and takes his left arm and wraps it around behind § 87(2)(b) upper back. By timestamp 01:10, PO Ahmemulic removed his arm from § 87(2)(b) back. At timestamp 01:12, officers turn § 87(2)(b) around and hold his arms behind him. At timestamp 01:17, PO Ahmemulic, PO Kapyrin, PO Racicot, PO Hudson restrain § 87(2)(b) arms and turn his back towards them. At timestamp 01:20, PO Ahmemulic says “Give me the fucking handcuffs.” At timestamp 01:34, PO Ahmemulic applies handcuffs on § 87(2)(b). At timestamp 01:46, § 87(2)(b) yells at officers and asks them why he is getting arrested. § 87(2)(b) breathing appears apparently normal and did not look like he was experiencing respiratory distress.

The BWC video obtained showed that nobody, including PO Ahmemulic, grabbed the front of § 87(2)(b) neck with their hands as alleged. § 87(2)(g)

§ 87(2)(b) The BWC video does not show the location of PO Ahmemulic’s hand. Although PO Ahmemulic’s arm made brief contact with the backside of § 87(2)(b) neck, it is unknown whether any contact was made with the front of § 87(2)(b) neck or throat. § 87(2)(g)

§ 87(2)(b), it is recommended that **Allegation E and Allegation F** be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 10).
- PO Ahmemulic has been a member of service for three years and has been a subject in eight CCRB complaints and thirty-two allegations, none of which were substantiated. § 87(2)(g)
- PO Kapyrin has been a member-of-service for eight years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of July 22, 2021 the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 9).

§ 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 15

Investigator:	<u>Jeffrey Tsui</u>	<u>INV Jeffrey Tsui</u>	<u></u>
06/02/2022	Signature	Print Title & Name	Date

Squad Leader:	<u></u>	<u>IM Simon Wang</u>	<u>06/02/22</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date